

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 4
APRIL 24, 2026
9:30 a.m.

1. TAMMY EVANS v. CODY EVANS

23FL0016

This matter is before the court on Petitioner's Request for Order ("RFO"), filed March 11, 2026. The RFO requests that the court make the following orders: (1) authorize Petitioner "to negotiate settlement/payoff with Police Credit Union"; (2) that "Respondent must pay all Petitioner's attorney's fees or provide access to employer legal benefits (which may not be used against her)"; and (3) authorize Petitioner "to seek pre-arraignment legal consultation (including Public Defender if eligible)."

Petitioner's RFO is denied in its entirety. With regard to Police Credit Union, Exhibit B to the RFO demonstrates that Petitioner was already discussing a potential payoff of the HELOC ("loan") with Police Credit Union ("PCU") without the need for court intervention. A representative with PCU told Petitioner that because she is not technically on the loan they could not provide her with specific information about the status of the loan. They also told her they could no longer offer payment plan options, but that Petitioner had the option of applying for a loan elsewhere to pay off the loan. Moreover, it appears the issue is moot as the foreclosure sale to pay off the loan occurred on December 16, 2025. The RFO as to the request for authorization to negotiate a settlement or payoff with Police Credit Union is denied.

With regard to Petitioner's request for attorney fees, she appears to be requesting financial assistance from Respondent to obtain legal assistance regarding "the financial issues affecting the marital residence and related proceedings." Petitioner's RFO does not comply with California Rules of Court, rule 5.527, subdivision (b). The RFO as to attorney fees is denied without prejudice.

Lastly, with regard to Petitioner's request that she be authorized to seek pre-arraignment legal consultation, including with the Public Defender if eligible, the request is denied as moot. Counsel was appointed to represent Petitioner at her arraignment on April 3, 2026.

TENTATIVE RULING #1: PETITIONER'S REQUEST FOR ORDER, FILED MARCH 11, 2026, IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. (CAL. RULES OF CT., RULE 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS v. SUPERIOR COURT (1999) 19 CAL.4TH 1232.) NOTICE TO ALL PARTIES

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OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. (CAL. RULES OF CT., RULE 3.1308; LOCAL RULE 8.05.07.)